

# Arena Stateless.pdf

 Universiti Teknologi MARA

---

## Document Details

### Submission ID

trn:oid:::13381:150650528

### Submission Date

Sep 5, 2026, 7:36 AM GMT+8

### Download Date

Sep 5, 2026, 6:42 PM GMT+8

### File Name

Arena Stateless.pdf

### File Size

502.8 KB

14 Pages

5,156 Words

29,205 Characters

## 61% detected as AI

The percentage indicates the combined amount of likely AI-generated text as well as likely AI-generated text that was also likely revised by AI.

Caution: Review required.

It is essential to understand the limitations of AI detection before making decisions about a student's work. We encourage you to learn more about Turnitin's AI detection capabilities before using the tool.



24 AI-generated 61%

Likely generated or likely generated and revised by AI.

### Disclaimer

Our AI writing assessment is designed to help educators identify text that might be prepared by a generative AI tool. Our AI writing assessment may not always be accurate (it may misidentify writing that is likely human generated as AI generated and likely AI generated as human generated) so it should not be used as the sole basis for adverse actions against a student. It takes further scrutiny and human judgment in conjunction with an organization's application of its specific academic policies to determine whether any academic misconduct has occurred.

# Legal Ghosts, Real Lives: The Socioeconomic Toll of Statelessness in Sabah

**Ahmad Fauze Abdul Hamit**

Faculty of Business and Management, Universiti Teknologi MARA (UiTM) Cawangan Sabah, Kampus Kota Kinabalu, 88997 Kota Kinabalu, Sabah, Malaysia

ahmad920@uitm.edu.my

## Abstract

Legal identity does not itself educate a child or treat a patient. It determines whether the state will. In Malaysia the documents recording a person's existence — birth certificate, marriage certificate, MyKad — govern who enters a public school, who is charged citizen rates at a clinic, who qualifies for welfare and who may hold formal employment. Where they are missing, the entitlements attached to them go missing too. This article examines that failure in Sabah, where documentation deficits are structural to coastal, island and peri-urban life rather than an administrative exception. It compares APPGM-SDG mapping reports for four constituencies visited in 2025 — Semporna (P.189), Putatan (P.173), Tuaran (P.170) and Labuan (P.166) — with 2024 mapping evidence from Kinabatangan (P.187), Kota Marudu (P.168) and Sipitang (P.178), reading both against three APPGM-SDG parliamentary policy reports, the Sabah Child Wellbeing Index 2026 and Department of Statistics Malaysia releases. Despite very different local economies, the seven seats share one sequence: registration failure upstream, service exclusion in the middle, labour and housing precarity downstream, each stage reinforcing the last. Undocumented and stateless children meet the SCWI health threshold at 0.6 per cent against 55.9 per cent of all Sabah children, and the learning threshold at 2.7 against 27.2. The article argues that Target 16.9 operates in Sabah less as a legal-administrative objective than as a binding constraint on Targets 1.3, 3.8, 4.1 and 8.5, and sets out six measures to interrupt the sequence.<sup>1</sup>

**Keywords:** statelessness; Sabah; undocumented communities; legal identity; social exclusion; APPGM-SDG; SDG 16.9

## 1. Introduction

A birth certificate does not teach a child to read. It decides whether the state will bother. In Malaysia the documents marking a person's legal existence determine school enrolment, clinic pricing, eligibility for e-

---

<sup>1</sup> Abstract: written by the author; AI assistance limited to language editing.

Kasih assistance and access to regulated employment, so a person can live in Sabah for three generations, work in its fisheries and estates, and remain absent from its administrative record. Allerton (2017) calls the result "contested statelessness", and the term earns its place because this population does not sort into the categories international law provides.<sup>2</sup>

The scale is not marginal. DOSM records Sabah's non-citizen population at 810,400 in 2020, 921,100 in 2023 and 1,043,400 in 2024 — growth of 28.76 per cent over four years against 3.47 per cent for citizens, and close to 28 per cent of the state's 3.74 million residents (DOSM, 2025, tabulated in APPGM-SDG, 2026b). Two cautions apply: these aggregates combine documented foreign workers, undocumented migrants and long-resident people of undetermined nationality, and are not a count of persons stateless under Article 1 of the 1954 Convention; and the distribution is uneven, with APPGM-SDG (2026b) reporting non-citizen majorities in Kinabatangan (78 per cent) and Kalabakan (67 per cent).

Who falls into the gap is heterogeneous: long-resident communities of Filipino and Indonesian descent; Bajau Laut maritime families in the Semporna islands; children of mixed marriages never registered; rural households that missed a deadline. What links them is outcome rather than origin. Since 2020 the All-Party Parliamentary Group Malaysia on the Sustainable Development Goals (APPGM-SDG) has mapped local needs through focus group discussions, site visits and inter-agency dialogues in 143 parliamentary constituencies. Its 2026 education policy report identifies 33 of them, in every year from 2020 to 2025, as recording problems of documentation and school access for undocumented children (APPGM-SDG, 2026a). The list spans states and includes six Sabah seats over five years: Kota Belud (2021); Lahad Datu (2022); Kudat, Ranau and Sandakan (2023); Sipitang and Kinabatangan (2024); and Labuan, Tuaran, Putatan and Semporna (2025).

Any remedy must survive Sabah's political economy, and this is where most such proposals die. Citizenship in the state is inseparable from the legacy of "Project IC", the alleged grant of identity documents to immigrants for electoral advantage in the 1990s; the Royal Commission of Inquiry on Immigrants in Sabah (2012–2014) concluded that unlawful issuance to foreign nationals had occurred (Malaysiakini, 2013). Whatever its scale, the episode left a durable suspicion in which regularization is read as demographic engineering. The Pas Sementara Sabah, proposed in 2019 as a biometric replacement for the IMM13 pass, the Sijil Banci and the Kad Burung-Burung, was defeated on that ground during the January 2020 Kimanis by-election (Sabah from the Ground, 2020; Cilisos, 2020). The implication here is narrow but consequential: an administrative solution that cannot be told apart from a demographic one

---

2 Sections 1–2: written by the author. AI summarised the APPGM-SDG policy reports during preparation; quotations and figures were checked by the author against the sources.

will not be implemented. The recommendations below therefore favour mechanisms that can be depoliticised over a single national card.

The argument is that legal identity should be treated as development infrastructure rather than as a question of sovereignty. Where it is missing, poverty programmes cannot reach the poorest, enrolment statistics overstate coverage, and health financing assumptions fail.

## 2. Theoretical Frame and SDG Anchoring

### 2.1 Three categories, routinely conflated

Analysis of this population is persistently confused by three terms used interchangeably. A stateless person, under Article 1 of the 1954 Convention relating to the Status of Stateless Persons, is one "not considered as a national by any State under the operation of its law" (UNHCR, 1954). A non-citizen is broader, covering documented foreign workers and irregular migrants who hold a nationality elsewhere. "Undocumented" cuts across both and describes anyone without valid identity or immigration papers, including Malaysians never registered at birth (Allerton, 2017). Most people in the APPGM-SDG mapping reports belong to the third category and only sometimes to the first. Collapsing them inflates estimates of Convention statelessness; treating them as unrelated obscures the mechanism they share. This article keeps the distinction throughout.

### 2.2 Capability, exclusion, and the point at which they meet

Two literatures do the explanatory work. Sen (1999) treats development as the expansion of real freedoms and asks what converts resources into functionings. Legal identity is such a conversion factor, and an unusually absolute one: without the paper a school cannot be entered, a clinic's citizen rate cannot be charged, a welfare register cannot be joined. Social exclusion theory supplies the temporal dimension, since Silver's (1994) account of exclusion as multi-dimensional rupture from labour markets, services and civic belonging describes a process that compounds rather than a condition that persists. In Sabah the sequence can be traced within one generation: an unregistered marriage produces a child without a birth certificate; that child cannot progress beyond primary school; the resulting adult takes informal work at a wage no contract regulates; informal work carries neither social protection nor eligibility for assistance. Arendt's (1973) "right to have rights" names what is lost at the first step, and Allerton's (2018) "impossible children" describes those who grow up knowing it. Figure 1 sets out the sequence and the targets it disables.

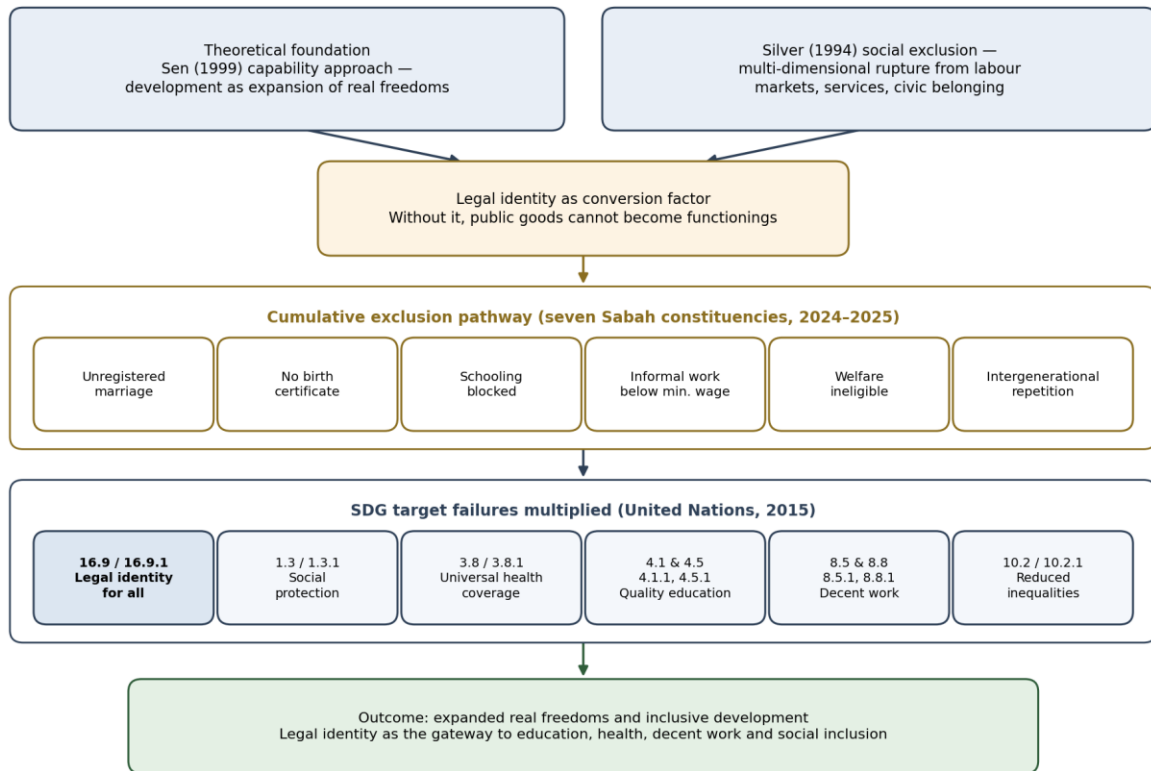


Figure 1. Theoretical framework: how legal identity deprivation multiplies SDG target failures in Sabah.

## 2.3 Anchoring in the 2030 Agenda

Anchoring matters substantively here, because one documentation gap disables several targets at once.

Table 1 states the anchoring used throughout.

Table 1. SDG anchoring: how the documentation gap binds each target

| Goal and target                       | Indicator                                              | How the gap binds it                                |
|---------------------------------------|--------------------------------------------------------|-----------------------------------------------------|
| 16.9 Legal identity for all           | 16.9.1 Birth registration, under 5                     | Upstream failure on which all others depend         |
| 1.3 Social protection systems         | 1.3.1 Coverage by social protection floors             | e-Kasih and PADU require MyKad                      |
| 3.8 Universal health coverage         | 3.8.1 Service coverage; 3.8.2 catastrophic expenditure | Foreigner fees price routine care out               |
| 4.1 and 4.5 Quality education         | 4.1.1 Proficiency; 4.5.1 parity indices                | Documentary gatekeeping at enrolment                |
| 8.5 and 8.8 Decent work               | 8.5.1 Average earnings; 8.8.1 occupational injury      | Earnings below the floor, unmeasurable              |
| 10.2 Inclusion irrespective of status | 10.2.1 Income growth of bottom 40 per cent             | Undocumented households absent from the denominator |

Source: United Nations (2015).

### 3. Method

**Design.** This is a comparative secondary analysis combining qualitative cross-case comparison with tabulated quantitative indicators. The APPGM-SDG mapping reports are treated as systematic grassroots evidence: they record focus group discussions, site observations and inter-agency dialogue, and findings go back to district agencies for verification before publication. They are compared across cases following Yin (2018) and coded thematically following Braun and Clarke (2006). No new primary data were collected; the contribution lies in integration, reading constituency findings against state-level indices not designed to speak to one another.<sup>3</sup>

**Case selection.** Four seats from Jilid 5: Wilayah Sabah (2025) were selected purposively for contrast — Semporna (P.189), Putatan (P.173), Tuaran (P.170) and Labuan (P.166) — spanning a maritime border district, a peri-urban seat, a mixed rural seat and a Federal Territory. To test whether the 2025 pattern is stable, the analysis adds 2024 mapping evidence from Kinabatangan (P.187) and Kota Marudu (P.168), reported in APPGM-SDG (2026a, 2026b), giving seven constituencies across two mapping years.

**Limitations.** Four matter. Official microdata on undocumented populations barely exists, so several figures below are schedules or community reports rather than audited records. The SCWI purposively sampled vulnerable children, so its undocumented and stateless subgroup — 591 children identified as stateless or undocumented, plus 59 undocumented but not so classified — is not random, and its percentages characterise that subgroup rather than estimating a population. APPGM-SDG focus groups yield pattern evidence, not prevalence. And the mapping reports cannot always distinguish citizens missing paperwork from non-citizens and Convention-stateless persons. The article claims order-of-magnitude clarity, not causal identification.

## 4. Findings: Seven Constituencies, One Sequence

### 4.1 Semporna: the concentrated case

Semporna, a maritime border district of roughly 186,200 people (2023), carries the clearest documentation failure in the sample. APPGM-SDG field teams visiting Kampung Tampi-Tampi, Pulau Omadal, Sungai Tohok and Pulau Pababag recorded entire settlements without any form of state identification (APPGM-SDG, 2025a). In Kampung Berjasa alone, more than 200 residents were recorded without identity cards, birth certificates or marriage records. The consequences follow quickly: children of undocumented parents, or of unregistered Bajau Laut marriages, cannot obtain birth certificates and progress stops at the end of primary school, while stilt houses in marine park areas such as Tun Sakaran

---

<sup>3</sup> Section 3: written by the author; AI drafted the limitations paragraph, which the author revised.

face enforcement demolition that households with no documented claim cannot contest. Table 4 sets out the price consequences of that absence.

#### 4.2 The 2024 seats: is the pattern new?

The 2024 evidence matters because it tests whether the 2025 findings describe a stable pattern or a single bad year, and because it shows the crisis inland, where maritime migration does not explain it. All three 2024 Sabah seats — Kinabatangan, Kota Marudu and Sipitang — list citizenship conflict arising from missing documentation among their principal issues, and the mechanisms match 2025. Kinabatangan records children unable to complete school documents where parents are in mixed marriages ("Dia tiada dokumen dari lahir padahal orang tempatan", a Kampung Simpang Entilibon participant, quoted in APPGM-SDG's 2026 education paper from the 2024 mapping). Kota Marudu's constraint is administrative capacity: the district registry cannot reach interior residents and the district has no High Court to confirm late birth certificates, so eligible families cannot finish registration. Sipitang adds the intergenerational strand: earlier generations never held identity cards, and through mixed marriages that absence now blocks healthcare, education and assistance.<sup>4</sup>

Two things follow. The 2024 and 2025 evidence agree on mechanism — unregistered or unconfirmable birth registration blocking schooling and assistance — a persistent administrative failure rather than a local one. And Kota Marudu names a cause with nothing to do with nationality: a missing court and an understaffed registry. Cheaper to solve than contested citizenship, it receives far less attention.

#### 4.3 Tuaran: mixed marriage and the poverty ledger

Tuaran shows the same failure inside rural agricultural life. The trigger is usually an unregistered mixed marriage between a Malaysian citizen and a foreign spouse lacking valid immigration papers. National Registration Department requirements are strict enough that children of these unions are frequently denied Malaysian birth certificates even where paternity is not disputed, and district welfare officers link the resulting anak tersisih cases to the district's hardcore poverty figures (APPGM-SDG, 2025c). Tuaran matters because its children are not foreign in any ordinary sense. They are the children of citizens whose paperwork failed.

#### 4.4 Labuan: kahwin kampung in a Federal Territory

Labuan is the analytic outlier and therefore the most instructive case. It is an offshore financial and energy hub with a comparatively low non-citizen share, about 11.5 per cent in 2023 (APPGM-SDG, 2025d).

---

<sup>4</sup> Section 4: written by the author from the APPGM-SDG mapping reports. AI structured the tables and checked arithmetic.

Mapping at Kampung Kiansam nonetheless found customary village marriages (kahwin kampung) preventing birth registration across generations, in families able to evidence Malaysian parentage plausibly. A prosperous Federal Territory should not have this problem; that it does points to procedural rigidity rather than state incapacity or foreign migration, and should unsettle anyone treating documentation failure as an east-coast or migrant issue.

#### 4.5 Putatan: documentation failure as an urban constraint

Putatan, on the peri-urban fringe of Kota Kinabalu, absorbs rural-urban migration and rapid commercial development at once. Education officers report documentary requirements gatekeeping enrolment, with roughly 12 schools serving about 12,000 pupils and many children outside the system (APPGM-SDG, 2025b). Informal settlements at Kampung Sembulan Lama, Muhibbah, Dumpil and Serigai house households that can hold neither lease nor title and face periodic enforcement, and fisheries assistance requires a registered boat licence that undocumented artisanal fishermen cannot obtain.

**Table 2.** Constituency markers from APPGM-SDG mapping reports, 2024 and 2025

| Seat                 | Year | Profile                                | Key signals recorded                                                                                                       |
|----------------------|------|----------------------------------------|----------------------------------------------------------------------------------------------------------------------------|
| Semporna (P.189)     | 2025 | Maritime border; ~186,200              | Kg. Berjasa: >200 without IC/birth/marriage documents; transport ~RM150 per pupil per month; wages RM500–600; ALC reliance |
| Kinabatangan (P.187) | 2024 | Inland                                 | Locally born residents without birth or marriage registration                                                              |
| Kota Marudu (P.168)  | 2024 | Rural interior                         | No High Court in district to confirm late birth certificates; registry cannot reach interior residents                     |
| Sipitang (P.178)     | 2024 | Coastal/interior                       | Prior generations never held identity cards; mixed marriages; absence blocks health, education, assistance                 |
| Tuaran (P.170)       | 2025 | Mixed rural                            | Unregistered mixed marriage → no birth certificate → out of school; anak tersisih linked to hardcore poverty               |
| Labuan (P.166)       | 2025 | Federal Territory; non-citizens ~11.5% | kahwin kampung blocks birth registration across generations                                                                |
| Putatan (P.173)      | 2025 | Peri-urban KK                          | ~12 schools, ~12,000 pupils; documents gate enrolment; boat licences block fisheries aid                                   |

Source: APPGM-SDG (2024, 2025a–d, 2026a, 2026b).

## 5. The Socioeconomic Toll

### 5.1 Education: access without progression

The Zero Reject Policy is often cited as evidence that Malaysian schools are open to all. In practice enrolment turns on whether a child has at least one Malaysian parent or legal guardian, making the policy conditional in exactly the cases that matter (Allerton, 2018). UNICEF Malaysia's (2019) out-of-school side study for Sabah reported roughly 23,560 primary school-age children out of school, 6.3 per cent of the cohort, with undocumented non-citizens and rural indigenous boys at highest risk. Loganathan et al. (2023) find the same gatekeeping in interviews across Malaysia: schools reject applications on incomplete identity documents, and one Sabah participant put the number of undocumented children in the state at over 100,000.

The Sabah Child Wellbeing Index 2026 gives the first state-level quantification of the gap. The SCWI surveyed 4,441 children across Sabah's five divisions using a two-phase design — random household sampling for population estimates and purposive outreach for under-represented groups — and scored 37 indicators across six domains using the Alkire-Foster method (UNICEF Malaysia & UPEN Sabah, 2026). On learning, 27.2 per cent of all Sabah children met the domain threshold against 2.7 per cent of undocumented or stateless children, a tenfold gap. Within that subgroup 35.6 per cent had access to education, meaning roughly two in three had none, and only 8.4 per cent had completed schooling. The distance between access and completion is the measure that matters: a minority of undocumented children do reach a classroom, and very few of those finish. Access without progression is what the Semporna and Putatan mapping reports describe, and the SCWI figures are its statistical form.<sup>5</sup>

Alternative Learning Centres carry the remainder. Iskul Sama Dilaut Omadal in Semporna, serving stateless Bajau Laut children, uses a peer model in which children who have reached government schools teach their undocumented classmates Malay literacy, arithmetic, hygiene and marine stewardship (Iskul Sama Dilaut Omadal, 2023). It is a genuine achievement, and evidence of a gap the state has not closed: ALCs cannot award certification, so their students accumulate literacy without credentials.

### 5.2 Health: price, fear, and a comparison often misread

Healthcare is gated by price as much as by status. The Ministry of Health does not formally deny emergency care to non-citizens, but foreigner fee schedules make routine care unaffordable. A first outpatient visit costing a Malaysian citizen RM1–3 is charged at roughly RM40 to a non-citizen, and a

---

<sup>5</sup> Section 5: AI-assisted drafting, substantially rewritten by the author. Table 3 was re-derived by the author from UNICEF Malaysia and UPEN Sabah (2026).

day in a third-class ward runs to RM160–320 (Khazanah Research Institute, 2020; Free Malaysia Today, 2024). Against informal earnings of RM500–600 a month these are not co-payments but prohibitions.

**Fear compounds cost.** Clinic staff work under circulars requiring undocumented patients to be reported to immigration, producing predictable avoidance as families wait until conditions become acute (Allerton, 2020). The SCWI records the outcome: 0.6 per cent of undocumented or stateless children met the health domain threshold, with 9.4 per cent up to date on vaccinations and about 2 per cent having the care they needed. One point of method matters, because the figure is often misquoted: it is common to set that 0.6 per cent against the 92.3 per cent of all Sabah children reported as having access to healthcare, but the two measure different constructs. The like-for-like comparison is the domain threshold: 55.9 per cent of all children against 0.6 per cent, a gap of 55.3 percentage points and roughly ninetyfold.

Two further points follow. Immunisation coverage this low in a cohort of this size is an epidemiological risk for the documented population too, making Target 3.8 a collective rather than sectional interest. And the legal picture is moving: the Constitution (Amendment) Act 2024, passed by the Dewan Rakyat on 17 October 2024, is expected to take effect around June–July 2026, while the backlog persists — 55,000 citizenship applications recorded as at December 2022, 49,000 processed and 6,000 targeted for completion by end-2025, some pending five to twenty years (APPGM-SDG, 2026a). A queue that long is itself a determination: children age out of childhood while waiting.

**Table 3.** SCWI 2026: all children compared with undocumented and stateless children

| Indicator                           | All children | Undocumented or stateless | Reading                                      |
|-------------------------------------|--------------|---------------------------|----------------------------------------------|
| Health domain threshold met         | 55.9%        | 0.6%                      | 55.3 pp gap; ~90× lower                      |
| Access to needed care               | —            | ~2.0%                     | Near-total exclusion                         |
| Vaccinations up to date             | —            | 9.4%                      | Single-digit coverage                        |
| Learning domain threshold met       | 27.2%        | 2.7%                      | 24.5 pp gap; ~10× lower                      |
| Access to education                 | —            | 35.6%                     | ~2 in 3 without access                       |
| Schooling completed                 | —            | 8.4%                      | Fewer than 1 in 12 complete                  |
| Safety and protection threshold met | 6.1%         | 6.6%                      | Only domain where the subgroup scores higher |

*Source: UNICEF Malaysia & UPEN Sabah (2026). n = 4,441; 591 children identified as stateless or undocumented, plus 59 undocumented but not so classified. Purposive subgroup: percentages characterise the surveyed group, not a population estimate. The 92.3% reported access to healthcare is a different construct from the domain threshold.*

### 5.3 Labour: a wage discount attached to status

Semporna focus groups put undocumented wages at RM500–600 per month, without contracts, payslips or occupational safety protection (APPGM-SDG, 2025a). The statutory minimum wage stood at RM1,500

until January 2025 and RM1,700 thereafter under the Minimum Wages Order 2024, so these earnings sit at roughly 29 to 40 per cent of the floor and at 18 to 22 per cent of Sabah's average poverty line income of RM2,705 a month (DOSM, 2024). The discount attaches to legal status rather than to skill, and it is unenforceable from the worker's side: undocumented labourers in fisheries, estates and informal urban work cannot open bank accounts, join unions or bring claims before the Labour Tribunal, which leaves the employer as the only party able to end the relationship. Wahab and Dollah (2023) document child labour in Sabah's oil palm sector under these conditions. The fiscal consequence is easily missed: an untaxed, uncontracted workforce depresses measured productivity, removes revenue and blocks skills formation, while the out-migration of documented young people from districts such as Semporna compounds it. Indicators 8.5.1 and 8.8.1 are not merely poorly reported for this group but structurally unavailable, itself a compliance problem under Target 8.8.

## 5.4 Welfare: the uncoun ted poor

Sabah records Malaysia's highest poverty. In 2024 absolute poverty incidence was 17.7 per cent against a national 5.1 per cent, and hardcore poverty 0.7 against 0.09 per cent; under DOSM's revised methodology the absolute figure rises to 23.9 per cent (DOSM, 2024). The paradox is that those most likely to be poor in Sabah are least likely to be counted. e-Kasih and PADU require a MyKad to enrol, as does most federal assistance, and APPGM-SDG (2026b) finds that non-citizens and people with documentation problems are routinely left out of existing schemes, with JKM reporting limited capacity to reach undocumented households in remote and interior areas. Poverty statistics built on those registers therefore understate deprivation, and Target 1.3 coverage is overstated for the same reason.

**Table 4.** Status and money: the multiples that matter

| Domain                                           | Citizen or formal benchmark             | Undocumented signal | Multiple or share              |
|--------------------------------------------------|-----------------------------------------|---------------------|--------------------------------|
| Outpatient first visit; third-class ward per day | RM1–3                                   | ~RM40; RM160–320    | ~13–40×; ~53–107×              |
| Monthly wage, Semporna FGD                       | RM1,500–1,700 minimum wage; PLI RM2,705 | RM500–600           | 29–40% of floor; 18–22% of PLI |
| School transport, Semporna                       | —                                       | ~RM150 per month    | 25–30% of wage                 |

Sources: APPGM-SDG (2025a); Khazanah Research Institute (2020); Free Malaysia Today (2024); DOSM (2024); Minimum Wages Order 2024.

## 5.5 Synthesis, and one qualification

Read together, the seven constituencies and the secondary data support three conclusions and one qualification.

First, documentation failure is a multiplier rather than a category. One missing birth certificate can halt school progression, multiply the effective price of healthcare, hold wages below the statutory floor, void welfare eligibility and expose a household to eviction — all at once, which is why single-sector interventions have underperformed.

Second, the crisis is heterogeneous in cause but common in architecture, as the six seats above demonstrate: maritime concentration in Semporna, procedural failure inland in Kinabatangan and Kota Marudu, marriage registration in Tuaran and Labuan, and housing-plus-enrolment gatekeeping in Putatan. Allerton's (2017) "contested statelessness" remains the best label available, since these are not UNHCR caseloads but populations produced by administrative omission, cross-border history and political anxiety.

Third, the fiscal case is straightforward. Sabah pairs Malaysia's largest non-citizen stock with its highest poverty rate. While roughly 1.04 million non-citizens and an uncounted number of undocumented and undetermined-nationality residents remain unequally legible to schools, clinics and welfare registers, the state cannot close its poverty gap, and each year of delay costs a cohort its health, schooling and trust.

The qualification matters. The SCWI found one domain, safety and protection, in which undocumented and stateless children scored marginally above the state average, 6.6 against 6.1 per cent, and it attributed their comparatively moderate participation scores to belonging in Alternative Learning Centres and community networks. This does not soften the picture, and almost no child in Sabah meets that threshold. But it shows these communities are not simply objects of state failure: they generate institutions of their own, and those are the obvious foundation for whatever the state builds next.

## 6. Policy Recommendations

A useful discipline is to separate what requires a political decision about citizenship from what does not. The first is contested and slow; the second is administrative, comparatively cheap, and is where the mapping evidence suggests the largest immediate gains. This follows APPGM-SDG's own policy sequence, in which the 2024 parliamentary paper on tiada kewarganegaraan treats documentation as a cross-cutting constraint and the 2026 education and social protection papers carry that into service delivery (APPGM-SDG, 2024, 2026a, 2026b).

**1. Deliver civil registration as outreach, not counter service.** Model the Sabah task force on Sarawak's Pasukan Petugas Khas and MEKAR outreach: a multi-agency body spanning JPN, Immigration, JKM, Health, Education, the Native Courts and SUHAKAM, deploying mobile units to maritime and interior communities, with triage between likely citizens, long-term residents of undetermined nationality and foundlings. The machinery partly exists — APPGM-SDG (2026a) records that JPN already fast-tracks foundling registration, with 912 cases registered by 2025. What is missing is scale.

**2. Separate service identity from final nationality determination.** Issue an interim service identity granting undocumented and stateless children access to schooling and preventive healthcare. Members of Parliament have proposed the MyKAS green card for precisely this purpose (APPGM-SDG, 2026a). A child's education should not wait on the adjudication of a parent's file.

**3. Recognise Alternative Learning Centres and connect them to certification.** Formal recognition, funding, syllabus alignment and bridging routes to national examinations such as the SPM would convert literacy provision into the credentials the 8.4 per cent completion figure says are missing.

**4. Make civil registration poverty-proof.** Run amnesty campaigns for kahwin kampung and cross-border marriages; accept alternative evidence bundles, including community leader attestation and sibling DNA, where hospital birth records do not exist; waive late-registration fees below the poverty line. Since Kota Marudu shows the binding constraint is procedural literacy, pair this with the village-level community case-finder model MPs have proposed (APPGM-SDG, 2026a).

**5. Close the statelessness wage discount.** Shift enforcement from the worker to the employer, and create firewalled channels for wage claims and occupational injury reports that do not trigger deportation risk. This is the only measure here that reaches Indicator 8.8.1 directly.

**6. Build a planning registry that cannot be used for enforcement.** A cross-agency registry covering JPN, JKM, KPM, PDRM and NGOs is needed to measure Indicator 16.9.1 and to budget realistically. Given the Project IC and PSS history it will only be populated if an independent body such as SUHAKAM safeguards it under use restrictions limiting it to SDG targeting and service planning. Without that guarantee it will stay empty, and the state will keep planning against a population it cannot see.<sup>6</sup>

## 7. Conclusion

The evidence from Putatan, Semporna, Tuaran and Labuan in 2025, and from Kinabatangan and Kota Marudu in 2024, describes one mechanism across seven very different local economies. It is inexpensive to interrupt at the registration stage and expensive to remediate afterwards. Target 16.9 is usually treated as a legal-administrative goal, and in Sabah that framing understates it: where birth registration fails, Targets 1.3, 3.8, 4.1 and 8.5 fail with it, and the state's own poverty statistics fail to record the failure.

---

<sup>6</sup> Section 6: the author's own recommendations, developed from APPGM-SDG (2024, 2026a, 2026b); AI used for phrasing only.

Legal identity is not a privilege the state confers on those who qualify. It is the infrastructure on which every other entitlement depends, and Sabah's development trajectory is being built without it.<sup>7</sup>

## References

- Allerton, C. (2017). Contested statelessness in Sabah, Malaysia: Irregularity and the politics of recognition. *Journal of Immigrant & Refugee Studies*, 15(3), 250–268.
- Allerton, C. (2018). Impossible children: Illegality and excluded belonging among children of migrants in Sabah, East Malaysia. *Journal of Ethnic and Migration Studies*, 44(7), 1081–1097.
- Allerton, C. (2020). Invisible children? Non-recognition, humanitarian blindness and other forms of ignorance in Sabah, Malaysia. *Critique of Anthropology*, 40(4), 455–470.
- APPGM-SDG. (2024). *Laporan Awal Dasar SDG Peringkat Parlimen APPGM-SDG: Tiada Kewarganegaraan; and Ringkasan Eksekutif & Laporan Awal – P.187 Kinabatangan, P.168 Kota Marudu* (Pemetaan Isu 2024). APPGM-SDG.
- APPGM-SDG. (2025a–d). *Laporan Pemetaan Isu Kawasan Parlimen 2025, Jilid 5: Wilayah Sabah – P.189 Semporna (a), P.173 Putatan (b), P.170 Tuaran (c), P.166 Labuan (d)*. APPGM-SDG.
- APPGM-SDG. (2026a). *Laporan Cadangan Dasar Peringkat Parlimen Tahun 2026: Penyelesaian Ke Arah Pendidikan Inklusif – Hak Pendidikan untuk Golongan Tanpa Dokumen di Malaysia*. APPGM-SDG.
- APPGM-SDG. (2026b). *Laporan Cadangan Dasar Peringkat Parlimen Tahun 2026: Memperkasakan Kesempaan Perlindungan Sosial Inklusif bagi Kumpulan Rentan di Sabah*. APPGM-SDG.
- Arendt, H. (1973). *The origins of totalitarianism* (New ed.). Harcourt.
- Braun, V., & Clarke, V. (2006). Using thematic analysis in psychology. *Qualitative Research in Psychology*, 3(2), 77–101.
- Cilisos. (2020). *What you need to know about the Pas Sementara Sabah*.
- Department of Statistics Malaysia. (2024). *Poverty in Malaysia 2024*. DOSM.
- Department of Statistics Malaysia. (2025). *Population estimates and non-citizen population, Sabah*. DOSM.

---

<sup>7</sup> Section 7 and references: written by the author; AI standardised APA formatting. The author is responsible for all interpretation, argument and conclusions in this article.

Free Malaysia Today. (2024, February 18). *Ministry looks into RM100mil hospital bills owed by foreigners*.

Iskul Sama Dilaut Omadal. (2023). *Community alternative learning centre, Omadal, Semporna*.

Khazanah Research Institute. (2020). *Social inequalities and health in Malaysia*. KRI.

Loganathan, T., Chan, Z. X., Hassan, F., Ong, Z. L., & Majid, H. A. (2023). Barriers and facilitators to education access for marginalised non-citizen children in Malaysia: A qualitative study. *PLOS ONE*, 18(6), e0286793.

Malaysiakini. (2013). *RCI: Unlawful issuance of ICs to foreigners did happen*.

Minimum Wages Order 2024, P.U.(A) 376/2024 (Malaysia).

Sabah from the Ground. (2020). *The Pas Sementara Sabah: What it was and why it failed*.

Sen, A. (1999). *Development as freedom*. Oxford University Press.

Silver, H. (1994). Social exclusion and social solidarity: Three paradigms. *International Labour Review*, 133(5–6), 531–578.

UNHCR. (1954). *Convention relating to the Status of Stateless Persons*. United Nations.

UNICEF Malaysia. (2019). *Children out of school: Malaysia – The Sabah context*. Out-of-School Children Initiative.

UNICEF Malaysia & UPEN Sabah. (2026). *Sabah Child Wellbeing Index: Study report*. UNICEF Malaysia.

United Nations. (2015). *Transforming our world: The 2030 Agenda for Sustainable Development* (A/RES/70/1).

Wahab, A., & Dollah, R. (2023). Measuring child labor in oil palm production in Sabah, Malaysia. *SAGE Open*, 13(4), 21582440231201264.

Yin, R. K. (2018). *Case study research and applications* (6th ed.). SAGE.